

Manual for Courts-Martial, United States, 1984
Rule for Courts-Martial 1004
(Prior to 1991 Amendment)

Capital cases

(a) *In general.* Death may be adjudged only when:

(1) Death is expressly authorized under Part IV of this Manual for an offense of which the accused has been found guilty or is authorized under the law of war for an offense of which the accused has been found guilty under the law of war; and

★ (2) The accused was convicted of such an offense by the concurrence of all the members of the court-martial present at the time the vote was taken; and

(3) The requirements of subsections (b) and (c) of this rule have been met.

(b) *Procedure.* In addition to the provisions in R.C.M. 1001, the following procedures shall apply in capital cases—

★ (1) *Notice.* Before arraignment, trial counsel shall give the defense written notice of which aggravating factors under subsection (c) of this rule the prosecution intends to prove. Failure to provide timely notice under this subsection of any aggravating factors under subsection (c) of this rule shall not bar later notice and proof of such additional aggravating factors unless the accused demonstrates specific prejudice from such failure and that a continuance or a recess is not an adequate remedy.

★ (2) *Evidence of aggravating factors.* Trial counsel may present evidence in accordance with R.C.M.

1001(b)(4) tending to establish one or more of the aggravating factors in subsection (c) of this rule.

(3) *Evidence in extenuation and mitigation.* The accused shall be given broad latitude to present evidence in extenuation and mitigation.

★ (4) *Necessary findings.* Death may not be adjudged unless—

(A) The members find that at least one of the aggravating factors under subsection (c) existed;

(B) Notice of such factor was provided in accordance with paragraph (1) of this subsection and all members concur in the finding with respect to such factor; and

(C) All members concur that any extenuating or mitigating circumstances are substantially outweighed by any aggravating circumstances admissible under R.C.M. 1001(b)(4), including the factors under subsection (c) of this rule.

(5) *Basis for findings.* The findings in subsection (b)(4) of this rule may be based on evidence introduced before or after findings under R.C.M. 921, or both.

★ (6) *Instructions.* In addition to the instructions required under R.C.M. 1005, the military judge shall instruct the members of such aggravating factors under subsection (c) of this rule as may be in issue in the case, and on the requirements and procedures under subsection (b)(4), (5), (7), and (8) of this rule. The military judge shall instruct the members that they must consider all evidence in extenuation and mitigation before they may adjudge death.

★ (7) *Voting.* In closed session, before voting on a sentence, the members shall vote by secret written ballot separately on each aggravating factor under subsection (c) of this rule on which they have been instructed. Death may not be adjudged unless all members concur in a finding of the existence of at least one such aggravating factor. After voting on all the aggravating factors on which they have been instructed, the members shall vote on a sentence in accordance with R.C.M. 1006.

★ (8) *Announcement.* If death is adjudged, the president shall, in addition to complying with R.C.M. 1007, announce which aggravating factors under subsection (c) of this rule were found by the members.

★ (c) *Aggravating factors.* Death may be adjudged only if the members find, beyond a reasonable doubt, one or more of the following aggravating factors:

(1) That the offense was committed before or in the presence of the enemy, except that this factor shall not apply in the case of a violation of Article 118 or 120;

★ (2) That in committing the offense the accused—

(A) Knowingly created a grave risk of substantial damage to the national security of the United States; or

(B) Knowingly created a grave risk of substantial damage to a mission, system, or function of the United States, provided that this subparagraph shall apply only if substantial damage to the national security of the United States would have resulted had the intended damage been effected;

★ (3) That the offense caused substantial damage to the national security of the United States, whether or not the

accused intended such damage, except that this factor shall not apply in case of a violation of Article 118 or 120;

★ (4) That the offense was committed in such a way or under circumstances that the lives of persons other than the victim, if any, were unlawfully and substantially endangered, except that this factor shall not apply to a violation of Articles 104, 106a, or 120;

(5) That the accused committed the offense with the intent to avoid hazardous duty;

(6) That, only in the case of a violation of Article 118 or 120, the offense was committed in time of war and in territory in which the United States or an ally of the United States was then an occupying power or in which the armed forces of the United States were then engaged in active hostilities;

(7) That, only in the case of a violation of Article 118(1):

(A) The accused was serving a sentence of confinement for 30 years or more or for life at the time of the murder;

(B) The murder was committed while the accused was engaged in the commission or attempted commission of any robbery, rape, aggravated arson, sodomy, burglary, kidnapping, mutiny, sedition, of piracy of an aircraft or vessel, or was engaged in flight or attempted flight after the commission or attempted commission of any such offense;

(C) The murder was committed for the purpose of receiving money or a thing of value;

(D) The accused procured another by means of compulsion, coercion, or a promise of an advantage, a service, or a thing of value to commit the murder;

(E) The murder was committed with the intent to avoid or to prevent lawful apprehension or effect an escape from custody or confinement;

★ (F) The victim was the President of the United States, the President-elect, the Vice President, or, if there was no Vice President, the officer in the order of succession to the office of President of the United States, the Vice-President-elect, or any individual who is acting as President under the Constitution and laws of the United States, any Member of Congress (including a Delegate to, or Resident Commissioner in, the Congress) or Member-of-Congress elect, justice or judge of the United States, a chief of state or head of government (or the political equivalent) of a foreign nation, or a foreign official (as such term is defined in section 1116(b)(3)(A) of title 18, United States Code), if the official was on official business at the time of the offense and was in the United States or in a place described in Mil. R. Evid. 315(c)(2), 315(c)(3);

(G) The accused then knew that the victim was any of the following persons in the execution of office: a commissioned, warrant, noncommissioned, or petty officer of the armed services of the United States; a member of any law enforcement or security activity or agency, military or civilian, including correctional custody personnel; or any firefighter;

(H) The murder was committed with intent to obstruct justice;

(I) The murder was preceded by the intentional infliction of substantial physical harm or prolonged,

substantial mental or physical pain and suffering to the victim;

(J) The accused has been found guilty in the same case of another violation of Article 118;

(8) That only in the case of a violation of Article 118(4), the accused was the actual perpetrator of the killing;

(9) That, only in the case of a violation of Article 120:

(A) The victim was under the age 12; or

(B) The accused maimed or attempted to kill the victim;

(10) That, only in the case of a violation of the law of war, death is authorized under the law of war for the offense;

★ (11) That, only in the case of a violation of Article 104 or 106a:

(A) The accused has been convicted of another offense involving espionage or treason for which either a sentence of death or imprisonment for life was authorized by statute; or

(B) That in committing the offense, the accused knowingly created a grave risk of death to a person other than the individual who was the victim.

For purposes of this rule, "national security" means the national defense and foreign relations of the United States and specifically includes: a military or defense advantage

over any foreign nation or group of nations; a favorable foreign relations position; or a defense posture capable of successfully resisting hostile or destructive action from within or without.

(d) *Spying*. If the accused has been found guilty of spying under Article 106, subsections (a)(2), (b), and (c) of this rule and R.C.M. 1006 and 1007 shall not apply. Sentencing proceedings in accordance with R.C.M. 1001 shall be conducted, but the military judge shall announce that by operation of law a sentence of death has been adjudged.

(e) *Other penalties*. Except for a violation of Article 106, when death is an authorized punishment for an offense, all other punishments authorized under R.C.M. 1003 are also authorized for that offense, including confinement for life, and may be adjudged in lieu of the death penalty, subject to limitations specifically prescribed in this Manual. A sentence of death includes a dishonorable discharge or dismissal, as appropriate. Confinement is a necessary incident of a sentence of death but not a part of it.

★ Indicate changes established by executive order 12550.

**Uniform Code of Military Justice Article 18
10 U.S.C. § 818**

Jurisdiction of general courts-martial

Subject to section 817 of this title (article 17), general courts-martial have jurisdiction to try persons subject to this chapter for any offense made punishable by this chapter and may, under such limitations as the President may prescribe, adjudge any punishment not forbidden by this chapter, including the penalty of death when specifically authorized by this chapter. General courts-martial also have jurisdiction to try any person who by the law of war is subject to trial by a military tribunal and may adjudge any punishment permitted by the law of war. However, a general court-martial of the kind specified in section 816(1)(B) of this title (article 16(1)(B)) shall not have jurisdiction to try any person for any offense for which the death penalty may be adjudged unless the case has been previously referred to trial as a noncapital case.

Uniform Code of Military Justice Article 36**10 U.S.C. § 836****(Prior to 1990 Amendment)****President may prescribe rules**

(a) Pretrial, trial, and post-trial procedures, including modes of proof, for cases arising under this chapter triable in courts-martial, military commissions and other military tribunals, and procedures for courts of inquiry, may be prescribed by the President by regulations which shall, so far as he considers practicable, apply the principles of law and the rules of evidence generally recognized in the trial of criminal cases in the United States district courts, but which may not be contrary to or inconsistent with this chapter.

(b) All rules and regulations made under this article shall be uniform insofar as practicable and shall be reported to Congress.

Uniform Code of Military Justice Article 56**10 U.S.C. § 856****Maximum limits**

The punishment which a court-martial may direct for an offense may not exceed such limits as the President may prescribe for that offense.

Uniform Code of Military Justice Article 106a
10 U.S.C. § 906a
Espionage

(a)(1) Any person subject to this chapter who, with intent or reason to believe that it is to be used to the injury of the United States or to the advantage of a foreign nation, communicates, delivers, or transmits, or attempts to communicate, deliver, or transmit, to any entity described in paragraph (2), either directly or indirectly, any thing described in paragraph (3) shall be punished as a court-martial may direct, except that if the accused is found guilty of an offense that directly concerns (A) nuclear weaponry, military spacecraft or satellites, early warning systems, or other means of defense or retaliation against large scale attack, (B) war plans, (C) communications intelligence or cryptographic information, or (D) any other major weapons system or major element of defense strategy, the accused shall be punished by death or such other punishment as a court-martial may direct.

(2) An entity referred to in paragraph (1) is—

(A) a foreign government;

(B) a faction or party or military or naval force within a foreign country, whether recognized or unrecognized by the United States; or

(C) a representative, officer, agent, employee, subject, or citizen of such a government, faction, party, or force.

(3) A thing referred to in paragraph (1) is a document, writing, code book, signal book, sketch, photograph, photographic negative, blueprint, plan, map, model, note, instrument, appliance, or information relating to the national defense.

(b)(1) No person may be sentenced by court-martial to suffer death for an offense under this section (article) unless—

(A) the members of the court-martial unanimously find at least one of the aggravating factors set out in subsection (c); and

(B) the members unanimously determine that any extenuating or mitigating circumstances are substantially outweighed by any aggravating circumstances, including the aggravating factors set out under subsection (c).

(2) Findings under this subsection may be based on—

(A) evidence introduced on the issue of guilt or innocence;

(B) evidence introduced during the sentencing proceeding; or

(C) all such evidence.

(3) The accused shall be given broad latitude to present matters in extenuation and mitigation.

(c) A sentence of death may be adjudged by a court-martial for an offense under this section (article) only if the members unanimously find, beyond a reasonable doubt, one or more of the following aggravating factors:

(1) The accused has been convicted of another offense involving espionage or treason for which either a sentence of death or imprisonment for life was authorized by statute.

(2) In the commission of the offense, the accused knowingly created a grave risk of substantial damage to the national security.

(3) In the commission of the offense, the accused knowingly created a grave risk of death to another person.

(4) Any other factor that may be prescribed by the President by regulations under section 836 of this title (Article 36).

Uniform Code of Military Justice Article 118
10 U.S.C. § 918
Murder

Any person subject to this chapter who, without justification or excuse, unlawfully kills a human being, when he—

(1) has a premeditated design to kill;

(2) intends to kill or inflict great bodily harm;

(3) is engaged in an act which is inherently dangerous to another and evinces a wanton disregard of human life; or

(4) is engaged in the perpetration or attempted perpetration of burglary, sodomy, rape, robbery, or aggravated arson;

is guilty of murder, and shall suffer such punishment as a court-martial may direct, except that if found guilty under clause (1) or (4), he shall suffer death or imprisonment for life as a court-martial may direct.

EXECUTIVE ORDER 12460

AMENDMENTS TO THE MANUAL FOR COURTS-MARTIAL,
UNITED STATES, 1969 (REVISED EDITION)

JANUARY 24, 1984

By the authority vested in me as President by the Constitution of the United States and by Chapter 47 of Title 10 of the United States Code (the Uniform Code of Military Justice), in order to prescribe amendments to the manual for Courts-Martial, United States, 1969 (Revised edition), prescribed by Executive Order No. 11476, as amended by Executive Order No. 11835, Executive Order No. 12018, Executive Order No. 12198, Executive Order No. 12233, Executive Order No. 12306, Executive Order No. 12315, Executive Order No. 12340, and Executive Order 12383, it is hereby ordered as follows:

Section 1. Paragraph 75 of the said Manual for Courts-Martial is amended by adding, after paragraph 75f, the following:

“g. Capital cases.

“(1) In general. Death may be adjudged only when:

“() Death is expressly authorized under the code and this Manual for an offense of which the accused has been found guilty or is authorized under the law of war for an offense of which the accused has been found guilty under the law of war; and

“(b) The requirements of 75g (2) and (3) have been met.

“(2) Procedure. In addition to the other provisions in 75, the following procedures shall apply in capital cases—

“(a) Notice. Before arraignment, trial counsel shall give the defense written notice of which aggravating circumstances under 75g(3) the prosecution intends to prove. Failure to provide timely notice under this subsection of any aggravating circumstances under 75g(3) shall not bar

later notice and proof of such additional aggravating circumstances unless the accused demonstrates specific prejudice from such failure and that a continuance or a recess is not an adequate remedy.

“(b) Evidence of aggravating circumstances. Trial counsel may present evidence in accordance with 75b(4) tending to establish one or more of the aggravating circumstances in 75g(3).

“(c) Evidence in extenuation and mitigation. The accused shall be given broad latitude to present evidence in extenuation and mitigation.

“(d) Necessary findings. Death may not be adjudged unless the members find:

“(i) Beyond a reasonable doubt that one or more of the aggravating circumstances under 75g(3) existed; and

“(ii) That any extenuating or mitigating circumstances are substantially outweighed by any aggravating circumstances including such circumstances under 75g(3) as the members have found existed.

“(e) Basis for findings. The findings in 75g(2)(d) may be based on evidence introduced before the findings on the issue of guilt, during the sentencing proceeding, or both.

“(f) Instructions. In addition to the instructions required under 76b(1), the military judge shall instruct the members on such aggravating circumstances under 75g(3) as may be in issue in the case and on the requirements and procedures under 75g (2)(d), (e), (g), and (h). The military judge shall instruct the members that they must consider all evidence in extenuation and mitigation before they may adjudge death.

“(g) Voting. In closed session, before voting on a sentence, the members shall vote by secret written ballot separately on each aggravating circumstance under 75g(3) on which they have been instructed. Death may not be adjudged unless all members concur in a finding of the existence of at least one such aggravating circumstance.

After voting on all the circumstances on which they have been instructed, the members shall vote on a sentence in accordance with 75b(2) and (3).

“(h) ~~Announcement.~~ If death is adjudged, the president shall, in addition to complying with 76c, announce which aggravating circumstances under 75g(3) were found by the members.

“(3) Aggravating circumstances. Death may be adjudged only if the members find, beyond a reasonable doubt, one or more of the following aggravating circumstances:

“(a) That the offense was committed before or in the presence of the enemy, except that this circumstances shall not apply in the case of a violation of Article 118 or 120;

“(b) That in committing the offense the accused intended to:

“(i) cause substantial damage to the national security of the United States; or

“(ii) caused substantial damage to a mission, system, or function of the United States, provided that this subparagraph shall apply only if substantial damage to the national security of the United States would have resulted had the intended damage been effected;

“(c) That the offense caused substantial damage to the national security of the United States, whether or not the accused intended such damage, except that this circumstance shall not apply in the case of a violation of Article 118 or 120;

“(d) That the offense was committed in such a way or under circumstances that the lives of persons other than the victim, if any, were unlawfully and substantially endangered, except that this circumstance shall not apply to a violation of Article 120;

“(e) That the accused committed the offense with the intent to avoid hazardous duty;

“(f) That, only in the case of a violation of Article 118 or 120, the offense was committed in time of war and in

territory in which the United States or an ally of the United States was then an occupying power or in which the armed forces of the United States were then engaged in active hostilities;

“(g) That, only in the case of a violation of Article 118(1):

“(i) The accused was serving a sentence of confinement for 30 years or more or for life at the time of the murder;

“(ii) The murder was committed while the accused was engaged in the commission or attempted commission of any robbery, rape, aggravated arson, sodomy, burglary, kidnapping, mutiny, sedition, or piracy of an aircraft or vessel, or was engaged in flight or attempted flight after the commission or attempted commission of any such offense;

“(iii) The murder was committed for the purpose of receiving money or a thing of value;

“(iv) The accused procured another by means of compulsion, coercion, or a promise of an advantage, a service, or a thing of value to commit the murder;

“(v) The murder was committed with the intent to avoid or to prevent lawful apprehension or effect an escape from custody or confinement;

“(vi) The victim was the President of the United States, the President-elect, the Vice President, or, if there was no Vice President, the officer next in the order of succession to the office of President of the United States, the Vice-President of the United States, the Vice-President-elect, or any individual who is acting as President under the Constitution and laws of the United States, any Member of Congress or Member-of-Congress elect, or any judge of the United States;

“(vii) The accused then knew that the victim was any of the following persons in the execution of office: a commissioned, warrant, noncommissioned, or petty officer of the armed services of the United States; a member of

any law enforcement or security activity or agency, military or civilian, including correctional custody personnel; or any firefighter;

“(viii) The murder was committed with intent to obstruct justice;

“(ix) The murder was preceded by the intentional infliction of substantial physical harm or prolonged, substantial mental or physical pain and suffering to the victim; or

“(x) The accused has been found guilty in the same case of another violation of Article 118;

“For purposes of this paragraph, ‘national security’ means the national defense and foreign relations of the United States and specifically includes; (a) a military or defense advantage over any foreign nation or group of nations, (b) a favorable foreign relations position, or (c) a defense posture capable of successfully resisting hostile or destructive action from within or without, overt or covert. Examples of substantial damage to the national security of the United States may include: impeding the performance of a combat mission or operation; impeding the performance of an important mission in a place subject to hostile fire or imminent danger pay (see 37 U.S.C. section 310(a)) and disclosing military plans, capabilities, or intelligence such as to jeopardize any combat mission or operation of the armed services of the United States or its allies or to materially aid an enemy of the United States.

“(h) That only in the case of a violation of Article 118(4), the accused was the actual perpetrator of the killing;

“(i) That, only in the case of a violation of Article 120:

“(i) The victim was under the age of 12; or

“(ii) The accused maimed or attempted to kill the victim; or

“(j) That, only in the case of a violation of the law of war, death is authorized under the law of war for the offense.

“(4) Spying. If the accused has been found guilty of spying under Article 106, 75g(1)(b), (2), and (3), and 76 shall not apply. Sentencing proceedings in accordance with 75a through f shall be conducted, but the military judge shall announce that by operation of law a sentence of death has been adjudged.”

Sec. 2. Paragraph 76b(1) is amended by adding in the first sentence after the language “in 76b(2) and 76b(3),” the following language:

“and, in capital cases, 75g(2)(g),”

Sec. 3 Paragraph 76b(3) is amended by adding after the first sentence the following language:

“See 75g(2)(g).”

Sec. 4. Paragraph 126a is amended by adding after the third sentence in the second paragraph the following language:

See 75. “..”

Sec. 5. Paragraph 126b is amended by adding after the language “by the code” the second time it appears, the following language:

“and this Manual”

Sec. 6. These amendments shall be effective immediately. These amendments shall apply in trials of capital offenses committed on or after this date.

Sec. 7. The Secretary of Defense, on behalf of the President, shall transmit a copy of this Order to the Congress of the United States in accord with Section 836 of Title 10 of the United States Code.

RONALD REAGAN
THE WHITE HOUSE,
January 24, 1984.